

Part VI. Accountability

No. 15

## **Whistleblower Protection**

Code

Cite this instrument as No. 15, Whistleblower Protection.

29 September 2026

### **Summary**

A report goes to the appeal body, not up the chain of command. Reprisal within 180 days is presumed unless written reasons are filed in 10 days.

A report that has to be approved by the person it concerns will not be made. Criminal matters still go to the police.

## Part 1. Purpose

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1.1 This instrument is the way a member or an employee reports a breach of this set without giving the report to the person who is the subject of it.

1.2 The report goes to the appeal body. It does not go to the chief as a condition of being heard. A rule that requires the chief's permission first is void.

## Part 2. How to report

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2.1 A report may be written or oral. The appeal body must write down an oral report within 2 days, keep the recording or the notes, and give the reporter a file number. An anonymous report is allowed. The body must open a file if the report states a date, a section, and a fact that can be checked. A report that names no fact may be closed within 15 days, with a one line reason in the file.

2.2 If the report describes conduct that may be a criminal offence, the appeal body must refer that part to the police within 2 days. The internal file continues for the questions of office, pay, and repayment. This instrument does not acquit or convict anyone.

2.3 The body must tell the reporter, if the body knows how to reach them, whether the file is open, referred, or closed, within 30 days. A finding on a breach of this set must be decided within a further 45 days, in writing.

### **Part 3. No reprisal**

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3.1 No councillor, employee, or contractor may dismiss, evict, cut a program, or threaten a person because that person made a report in good faith or gave evidence to the appeal body.

3.2 A dismissal, eviction, or program cut within 180 days after a report is presumed to be reprisal unless the decision maker files written reasons with the appeal body within 10 days of the decision. The reasons must show the same rule would apply to a person who had not reported.

3.3 On a reprisal complaint, the decision complained of is suspended the day the appeal body receives the complaint. A benefit that was cut must be restored within 7 days. The person who took the reprisal must not make that decision again. A second reprisal finding removes that person from office or employment, effective 7 days after the written decision unless a court stays it in those 7 days.

## Part 4. What gets published

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4.1 The public log states the file number, the section allegedly breached, the outcome, and the date. It does not publish the unverified story. A public accusation that a named person committed a crime or a fraud can be defamation. Members should make that accusation, if they make it, in the report to the appeal body, not in a poster or a video.

4.2 A person who makes a report knowing it is false is not eligible to open another file for 1 year. The appeal body must post that finding, without repeating the false content, within 7 days. That finding is not a court judgment.

## Part 5. Amendment

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5.1 Council must not amend this whistleblower instrument by resolution. A resolution that tries is void on the day it is signed. The appeal body must post that fact within 14 days.

5.2 The electoral officer posts the full text at least 30 days before the vote. A vote on shorter notice is void. The officer posts the count within 3 days.

5.3 The change passes if a majority of the votes cast are yes and at least 25 percent of the electors vote. A change that would remove a check named in the constitution passes only if a majority of all electors vote yes. If that count is not met, the change is void.

5.4 The text comes into force the day after the electors adopt it under this Part. It does not repeal a law already in force unless the electors also meet that law's own replacement rule.

5.5 The appeal body reviews the text every 4 years from that day and posts a written report within 60 days. The report does not change the text.